

5.	Emery v. Marovic 22-1267207	(Off calendar)
6.	Ngo v. Hanh Phuoc Enterprises, Inc. 21-1233241	Before the Court are two motions. The first motion is by Attorney Jon McGrath to be relieved as counsel for defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen ("Defendants"). That motion is DENIED. The second motion is by defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen to continue trial. That motion is GRANTED as set forth herein. MOTION TO BE RELIEVED AS COUNSEL Jon McGrath seeks to be relieved as counsel for the Defendants because they have not paid his fees as required under the retainer agreement. <i>Rule of Court 3.1326</i> sets forth the mandatory requirements for this motion. Mr. McGrath failed to comply with <i>Rule 3.1362(c), (d) and (e)</i>. Mr. McGrath did not use the mandatory declaration form, MC-052, required by <i>3.1362(c)</i>. Instead, he prepared his own declaration where he described at length how the clients had not been paying him and how he had financial difficulty but the declaration he submitted did not cover the topics in the mandatory Form MC-052. Mr. McGrath did not comply with the service requirements set forth in <i>3.1362(d)</i>. There is no declaration stating that the clients' address had been confirmed within 30 days. Also, the Court notes that there are inconsistencies regarding the address of the defendants. There is a POS attached to the motion which shows that the two clients were served by mail at 624 Manchester Ave., Los Angeles, CA 90001. However, there is reference in Exhibit 2 to the defendants having a different address. Mr. McGrath also did not comply with <i>Rule 3.1362(e)</i> which requires a that a "proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." Accordingly, for the foregoing reasons, the motion by Jon McGrath to be relieved as counsel is DENIED. MOTION TO CONTINUE TRIAL <i>CRC 3.1332(c)</i> states that "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." "A motion for continuance is